

MORTGAGE COVENANTS to secure the payment of Thirty one Hundred Dollars in three years with interest thereon at the rate of six per centum per annum, payable semi-annually herefrom, as provided in a certain note of even date, and also to secure the performance of all agreements herein contained, a certain parcel of land and the buildings on it lying in said SOMERVILLE being the lot numbered 3 on a plan of land belonging to heirs of Edward Foote made by Charles D. Elliot dated May 26, 1899 and recorded in the Registry of Deeds for the Southern District of said County in Book of Plans No. 116, Plan No. 36, said parcel being bounded and described as follows:- Northwesterly by Fenwick Street Extension, as shown on said plan, 38 feet; Northeasterly by lot numbered 4 as shown on said plan, 73.99 feet; Southeasterly by land of owner or owners unknown as shown on said plan, 38 feet; Southwesterly by lots numbered one and two as shown on said plan, 73.91 feet. We also agree that we will keep the buildings now and hereafter standing on said land insured against fire in sum of Thirty One Hundred Dollars, all insurance on such buildings to be made first payable to and to be for the benefit of the holder of this mortgage; that in case so much of the grantee's deposits as is invested in loans secured by mortgages of taxable real estate shall not be exempt from a State tax, will on demand pay to the grantee the same per centage on the debt hereby secured as it shall from time to time be required to pay as such state tax; that if there shall be any default in any condition herein, which shall exist for thirty days, the entire mortgage debt shall at the option of said holder at once become due and payable. For said consideration We wife of the grantor, hereby release to the grantee all rights of DOWER CURTESY AND HOMESTEAD and all other interests in the mortgaged premises. This mortgage is upon the Statutory Condition for any breach of which the mortgagee shall have the Statutory Power of Sale. WITNESS our hands and common seal this sixth day of January A.D. 1919.

COMMONWEALTH OF MASSACHUSETTS. Middlesex ss. January 9th, 1919. Before me then personally appeared John Logue above named and acknowledged the foregoing instrument to be his free act and deed, L. Roger Wentworth, Justice of the Peace. My commission expires April 1919. - - -

LOGUE et al
to
CONSTANT

KNOW ALL MEN BY THESE PRESENTS that we, John Logue and Mar-

garet Logue, of Somerville, in the County of Middlesex and Commonwealth of Massachusetts in consideration of Two Hundred Fifty Dollars paid by Thomas B. Constant, of East Boston, in the County of Suffolk and Commonwealth aforesaid, the receipt whereof is hereby acknowledged, do hereby give, grant, bargain, sell and convey unto the said Thomas B. Constant and his heirs and assigns, a certain parcel of land with the buildings thereon, situated in said SOMERVILLE, being Lot numbered three (3) on "Plan of Lots in Somerville, belonging to the heirs of Edward Foote, May 26, 1899, Charles D. Elliott, Engineer," recorded with Middlesex (South District) Deeds, Book of Plans 116, Plan 36, and bounded and described as follows, to wit: Northwesterly by Fenwick Street Extension, as shown on said plan, thirty-eight (38) feet; Northeasterly by Lot numbered four (4) as shown on said plan, seventy-three and 99/100 (73.99) feet; Southeasterly by land of owner or owners unknown as shown on said plan, thirty-eight (38) feet; and Southwesterly by lots numbered one (1) and two (2) as shown on said plan, seventy-three and 91/100 (73.91) feet; containing twenty-eight Hundred ten (2810) square feet of land according to said plan. Being the same premises conveyed to us by John Peck, Clarence B. Peck, Alice G. Brown, Arthur S. Peck and Edith D. Tozier, Heirs of Phebe A. Peck, by deed of even date to be recorded herewith. TO HAVE AND TO HOLD the granted premises, with all the privileges and appurtenances thereto belonging, to the said Thomas B. Constant and his heirs and assigns, to their own use and behoof forever. And we hereby for ourselves and our heirs, executors and administrators COVENANT with the grantee and his heirs and assigns that we are lawfully seized in fee-simple of the granted premises; that they are free from all incumbrances, except a mortgage for \$3100. given to the Somerville Trust Company, that we have good right to sell and convey the same as aforesaid; and that we will and our heirs, executors, and administrators shall WARRANT AND DEFEND the same to the grantee and his heirs and assigns forever against the lawful claims and demands of all persons, except as aforesaid, PROVIDED NEVERTHELESS that if we, or our heirs, executors, administrators, or assigns, shall pay unto the grantee, or his executors, administrators, or assigns, the sum of Two Hundred Fifty Dollars, payable fifteen (15.00) dollars per month with the privilege of paying more in one 1/2 years from this date, with interest semi-annually at the rate of seven per cent per annum, and until such payment shall pay all taxes and assessments, to whomsoever laid or assessed, whether on the granted premises or on any interest therein,

Cambridge, July 25-1919.
 I acknowledge full satisfaction for the debt secured
 by this mortgage and do hereby cancel and discharge
 the same.
 Attest: *Thomas B. Constant*
Albert D. Williamson Clerk of City

or on the debt secured hereby; shall keep the buildings on said premises insured against fire, in a sum not less than Thirty-five Hundred Dollars for the benefit of the grantee and his executors, administrators and assigns, in such form and at such insurance offices as they shall approve, and, at least two days before the expiration of any policy on said premises shall deliver to him or them, a new and sufficient policy to take the place of the one so expiring; and shall not commit or suffer any strip or waste of the granted premises, or any breach of any covenant herein contained; then this deed, as also one note of even date herewith, signed by us whereby we promise to pay to the grantee or order the said principal sum and instalments of interest at the times aforesaid, shall be void. BUT UPON ANY DEFAULT in the performance or observance of the foregoing condition, the grantee, or his executors, administrators, or assigns, may sell the granted premises or such portion thereof as may remain subject to this mortgage in case of any partial release hereof together with all improvements that may be thereon, by public auction in said Somerville first publishing a notice of the time and place of sale once each week for three successive weeks in some one newspaper published in said Somerville the first publication of such notice to be not less than twenty-one days before the day of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee-simple; and such sale shall forever bar us and all persons claiming under us from all right and interest in the granted premises, whether at law or in equity. And out of money arising from such sale the grantee or his representatives shall be entitled to retain all sums then secured by this deed, whether then or thereafter payable, including all costs, charges, and expenses incurred or sustained by them by reason of any default in the performance or observance of the said condition, rendering the surplus, if any, to us or our heirs or assigns; and we hereby, for ourselves and our heirs or assigns, covenant with the grantee and his heirs, executors, administrators, and assigns, that, in case a sale shall be made under the foregoing power, we or they will upon request, execute, acknowledge, and deliver to the purchaser or purchasers a deed or deeds of release confirming such sale, and said grantee and his assigns are hereby appointed and constituted the attorney or attorneys irrevocable of the said grantor to execute and deliver to the said purchaser a full transfer of all policies of insurance on the buildings upon the land covered by this mortgage at the time of such sale. AND IT IS AGREED that the

grantee, or his executors, administrators or assigns, or any person or persons in their behalf, may purchase at any sale made as aforesaid, and that no other purchaser shall be answerable for the application of the purchase money; and that, until default in the performance or observance of the condition of this deed, we and our heirs and assigns may hold and enjoy the granted premises and receive the rents and profits thereof. And for the consideration aforesaid, do hereby release unto the said grantee and heirs and assigns all right of or to both DOWER AND HOMESTEAD in the granted premises, and all rights by statutes and all other rights therein. IN WITNESS WHEREOF we the said John Logue and Margaret Logue hereunto set our hands and seals this Ninth day of January in the year one thousand nine hundred and nineteen. John Logue (seal) Margaret Logue (seal) Signed and sealed in presence of , COMMONWEALTH OF MASSACHUSETTS. Middlesex ss. January 9th, 19. Then personally appeared the above-named John Logue and acknowledged the foregoing instrument to be his free act and deed, before me, L. Roger Wentworth, Justice of the Peace. My Commission expires April 1919. - - - - - Middlesex ss. Jan. 10, 1919. 2h. 21m. P.M. Rec'd & Recorded.

I, Sarah M. Kimball Harrison, of Stoneham, Middlesex County, Massachusetts, for consideration paid grant to Mary J. Brock, of Malden in said County and Commonwealth, with WARRANTY COVENANTS a certain parcel of land with the buildings thereon, situated in said MALDEN being lot numbered 2 on a Plan of Building Lots belonging to Marshall S. Shedd, A. F. and N. N. Sargent, Surveyors, June, 1874, recorded with Middlesex South District Deeds, Book of Plans 77, Plan 27, bounded as follows:- Westerly on Mount Vernon Street, formerly called Woodland Street, fifty (50) feet; Northerly by lot numbered 3 on said plan, one hundred forty-six (146) feet; Easterly by lot numbered 21 on said plan, fifty and two hundredths (50.02) feet; Southerly by lot numbered 1 on said plan, one hundred and fifty (150) feet, containing 7,396 square feet, more or less. Being the same premises conveyed to me, then Sarah M. Kimball, by Edward H. Lounsbury by deed dated April 1, A.D., 1899, and recorded with Middlesex South District Deeds, book 2730, page 171. I, Frederick W. Harrison, husband of said grantor, release to said grantee, all rights of CURTESY AND HOMESTEAD and other interests therein. WITNESS our hands and seals this second day of January, A.D., 1919. Sarah M. Kimball Harrison (seal) Frederick W. Harrison (seal) H. H.

HARRISON et al
to
BROCK

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* U.S. *
* Rev. *
* Stamps *
* \$4.50 *
* S.M.K.H. *
* 1/10/1919 *
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